SOLICITATION, OFFER, AND AWARD *(Construction, Alteration, or Repair)*	1. SOLICITATION NO. N4019221R28000019	2. TYPE OF SOLICITATION [ ] SEALED BID (IFB) [X] NEGOTIATED *(RFP)*	3. DATE ISSUED 29-Sep-2023	PAGE OF PAGES 1 OF 33

IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NO. N4019223D2803	5. REQUISITION/PURCHASE REQUEST NO. ACQR5858342	6. PROJECT NO.

7. ISSUED BY CODE N40192	8. ADDRESS OFFER TO *(If Other Than Item 7)* CODE
COMMANDING OFFICER - NAVFAC MARIANAS MAR CORE DC PSC 455, BOX 195 FPO AP 96540-2937 TEL: FAX:	**See Item 7** TEL: FAX:

9. FOR INFORMATION CALL:	A. NAME DORIS CASTRO	B. TELEPHONE NO. *(Include area code)* *(NO COLLECT CALLS)* 671-339-8465

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying no., date):*

REQUEST FOR PROPOSAL N40192-21-R-2800 – SMALL BUSINESS (SB) DESIGN-BUILD MULTIPLE AWARD CONSTRUCTION CONTRACT (DBMACC), VARIOUS LOCATIONS, GUAM

The work to be acquired under this DBMACC is new construction, renovation/modernization, and routine repair/maintenance, by method of design-build, at various federal or military facilities and installations on Guam. Occasionally, work may be required at federal or military facilities and installations in the Northern Mariana Islands and the outlying Pacific islands. The work (tasks) will generally provide all design, labor, transportation, equipment, materials, tools, supplies, engineering, supervision, and administration services needed to complete the scope of work. A list of facility types are identified in the P-72 "Facility Category Codes" publication. The work shall also include sampling, testing, removal, and disposal of lead contaminated paint, asbestos and other hazardous materials.

PROPOSAL DOCUMENTS:
- Solicitation, Offer, and Award (SF1442)
- Instructions to Offerors
- Representations and Certifications

CONTRACT DOCUMENTS:
- Solicitation, Offer, and Award (SF1442)
- Contract Clauses

11. The Contractor shall begin performance within _____ calendar days and complete it within _____ calendar days after receiving [X] award, [ ] notice to proceed. This performance period is [ ] mandatory, [ ] negotiable. *(See _____ .)*

12 A. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? *(If "YES," indicate within how many calendar days after award in Item 12B.)* [X] YES [ ] NO	12B. CALENDAR DAYS 10

13. ADDITIONAL SOLICITATION REQUIREMENTS:

A. Sealed offers in original and 4 copies to perform the work required are due at the place specified in Item 8 by 04:30 PM *(hour)* local time 24 Mar 2023 *(date)*. If this is a sealed bid solicitation, offers must be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

B. An offer guarantee [X] is, [ ] is not required.

C. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

D. Offers providing less than 120 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

SOLICITATION, OFFER, AND AWARD (Continued)

(Construction, Alteration, or Repair)

OFFER ***(Must be fully completed by offeror)***

14. NAME AND ADDRESS OF OFFEROR *(Include ZIP Code)*	15. TELEPHONE NO. *(Include area code)*
CHUGACH CONSOLIDATED SOLUTIONS, LLC WILLIAM MARTZ 3800 CENTERPOINT DR STE 1200 ANCHORAGE AK 99503-5825	(907) 868-2875
	16. REMITTANCE ADDRESS *(Include only if different than Item 14)* **See Item 14**
CODE 6XZF0 / FACILITY CODE	

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. *(Insert any number equal to or greater than the minimum requirements stated in Item 13D. Failure to insert any number means the offeror accepts the minimum in Item 13D.)*

AMOUNTS	SEE SCHEDULE OF PRICES

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NO.										
DATE										

20A. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*	20B. SIGNATURE	20C. OFFER DATE

AWARD ***(To be completed by Government)***

21. ITEMS ACCEPTED:

SEE SCHEDULE

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA
$600,000,000.00	

24. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)*	ITEM	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO ☐ 10 U.S.C. 2304(c) ☐ 41 U.S.C. 253(c)
26. ADMINISTERED BY CODE **See Item 7**		27. PAYMENT WILL BE MADE BY: CODE N68732 DEFENSE FINANCE & ACCOUNTING SERVICE DFAS-CLEVELAND NORFOLK ACCOUNTS PAYABLE PO BOX 998022 CLEVELAND OH 44199-2123

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT *(Contractor is required to sign this document and return _ _ copies to issuing office.)* Contractor agrees to furnish and deliver all items or perform all work, requisitions identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications or incorporated by reference in or attached to this contract.

☒ 29. AWARD *(Contractor is not required to sign this document.)* Your offer on this solicitation, is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.

REF: N40192-21-R-2800

30A. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN *(Type or print)*	31A. NAME OF CONTRACTING OFFICER *(Type or print)* DORIS CASTRO / SUPVY CONTRACT SPECIALIST TEL: 671-339-8465 EMAIL: Doris.Castro@fe.navy.mil
30B. SIGNATURE / 30C. DATE	31B. UNITED STATES OF AMERICA BY Dora R. Castro
	31C. AWARD DATE 29-Sep-2023

Section 00 10 00 - Solicitation

SF1442 BLOCK 10 CONTINUATION

READ THE FOLLOWING IN CONJUNCTION WITH THE ACQUISITION REQUIREMENTS.

This procurement is restricted to Small Business concerns.
NAICS: 236220 Commercial and Institutional Building Construction Size Standard: $45 million

The maximum aggregate dollar value for all 10 awarded contracts, including the base period and all option periods, is $600,000,000. Each contract has a base period of 60 months and three (3) 12-month option periods for a total maximum duration of 96 months.

Task Order Range is $1,000,000 to $20,000,000.

The minimum guarantee of $25,000 for the base period will be addressed through the issuance of the first task order under this contract.

Sections 00 21 16, 00 22 16, and 00 45 00 pertain to source selection and are not included in the basic contract award document.

ENFORCEABILITY OF PROPOSAL:

Items offered in the contractor's proposal are binding on the contractor and shall be provided for the duration of the contract. Substitutions will require prior Contracting Officer's approval and shall be equal or better, in the judgment of the Contracting Officer, than the items originally proposed.

ITEM NO	SUPPLIES/SERVICES	MAX QUANTITY	UNIT	UNIT PRICE	MAX AMOUNT
0001		600,000,000	Each	$1.00	$600,000,000.00 NTE

Base Period - SB-DBMACC
FFP
This Indefinite Delivery/Indefinite Quantity (IDIQ) is a Design-Build Multiple Award Construction Contract (DBMACC) with a base period of 60 months and three (3) 12-month option periods for a total maximum duration of 96 months. A task order for the minimum guarantee is issued concurrently with the award of the basic contract. A new delivery date for this DBMACC will be established upon exercise of an option. The maximum aggregate dollar value for all awarded contracts, including the base period and all option periods, is $600,000,000. The actual amount of work to be ordered under this DBMACC and the time of such performance will be determined by a contracting officer who will issue written task orders. Funds will be obligated upon issuance of each individual task order. All task orders, including those issued in any exercised option periods, shall be issued against this CLIN 0001.
FOB: Destination
PURCHASE REQUEST NUMBER: ACQR5858342
PSC CD: Z1AZ

MAX NET AMT	$600,000,000.00

ITEM NO	SUPPLIES/SERVICES	MAX QUANTITY	UNIT	UNIT PRICE	MAX AMOUNT
0002 OPTION	First Option Period - SB-DBMACC FFP This Indefinite Delivery/Indefinite Quantity (IDIQ) is a Design-Build Multiple Award Construction Contract (DBMACC) with a base period of 60 months and three (3) 12-month option periods for a total maximum duration of 96 months. A new delivery date for this DBMACC will be established upon exercise of this option. The maximum aggregate dollar value for all awarded contracts, including the base period and all option periods, is $600,000,000. The actual amount of work to be ordered under this DBMACC and the time of such performance will be determined by a contracting officer who will issue written task orders. Funds will be obligated upon issuance of each individual task order. All task orders, including those issued in any exercised option periods, shall be issued against CLIN 0001. FOB: Destination PURCHASE REQUEST NUMBER: ACQR5858342 PSC CD: Z1AZ	UNDEFINED			NSP
				MAX NET AMT	

ITEM NO	SUPPLIES/SERVICES	MAX QUANTITY	UNIT	UNIT PRICE	MAX AMOUNT
0003		UNDEFINED			NSP
OPTION	Second Option Period - SB-DBMACC FFP This Indefinite Delivery/Indefinite Quantity (IDIQ) is a Design-Build Multiple Award Construction Contract (DBMACC) with a base period of 60 months and three (3) 12-month option periods for a total maximum duration of 96 months. A new delivery date for this DBMACC will be established upon exercise of this option. The maximum aggregate dollar value for all awarded contracts, including the base period and all option periods, is $600,000,000. The actual amount of work to be ordered under this DBMACC and the time of such performance will be determined by a contracting officer who will issue written task orders. Funds will be obligated upon issuance of each individual task order. All task orders, including those issued in any exercised option periods, shall be issued against CLIN 0001. FOB: Destination PURCHASE REQUEST NUMBER: ACQR5858342 PSC CD: Z1AZ				
				MAX NET AMT	

ITEM NO	SUPPLIES/SERVICES	MAX QUANTITY	UNIT	UNIT PRICE	MAX AMOUNT
0004 OPTION	Third Option Period - SB-DBMACC FFP This Indefinite Delivery/Indefinite Quantity (IDIQ) is a Design-Build Multiple Award Construction Contract (DBMACC) with a base period of 60 months and three (3) 12-month option periods for a total maximum duration of 96 months. A new delivery date for this DBMACC will be established upon exercise of this option. The maximum aggregate dollar value for all awarded contracts, including the base period and all option periods, is $600,000,000. The actual amount of work to be ordered under this DBMACC and the time of such performance will be determined by a contracting officer who will issue written task orders. Funds will be obligated upon issuance of each individual task order. All task orders, including those issued in any exercised option periods, shall be issued against CLIN 0001. FOB: Destination PURCHASE REQUEST NUMBER: ACQR5858342 PSC CD: Z1AZ	UNDEFINED			NSP

	MAX NET AMT

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE
0001	POP 29-SEP-2023 TO 28-SEP-2028	N/A	COMMANDING OFFICER - NAVFAC MARIANAS DORIS R CASTRO MAR CORE DC PSC 455, BOX 195 FPO AP 96540-2937 671-339-8465 FOB: Destination	N40192
0002	N/A	N/A	N/A	N/A
0003	N/A	N/A	N/A	N/A
0004	N/A	N/A	N/A	N/A

Section 00 70 00 - Conditions of the Contract

CLAUSES INCORPORATED BY REFERENCE

52.202-1	Definitions	JUN 2020
52.203-3	Gratuities	APR 1984
52.203-5	Covenant Against Contingent Fees	MAY 2014
52.203-6	Restrictions On Subcontractor Sales To The Government	JUN 2020
52.203-7	Anti-Kickback Procedures	JUN 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	MAY 2014
52.203-10	Price Or Fee Adjustment For Illegal Or Improper Activity	MAY 2014
52.203-12	Limitation On Payments To Influence Certain Federal Transactions	JUN 2020
52.203-13	Contractor Code of Business Ethics and Conduct	JUN 2020
52.204-2	Security Requirements	MAR 2021
52.204-4	Printed or Copied Double-Sided on Postconsumer Fiber Content Paper	MAY 2011
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	JUN 2020
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-15	Service Contract Reporting Requirements for Indefinite-Delivery Contracts	OCT 2016
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.204-19	Incorporation by Reference of Representations and Certifications.	DEC 2014
52.204-21	Basic Safeguarding of Covered Contractor Information Systems	JUN 2016
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities.	JUL 2018
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	AUG 2020
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, or Proposed for Debarment	JUN 2020
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters	OCT 2018
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations	NOV 2015
52.210-1	Market Research	JUN 2020
52.211-13	Time Extensions	SEP 2000
52.211-15	Defense Priority And Allocation Requirements	APR 2008
52.211-18	Variation in Estimated Quantity	APR 1984
52.215-2	Audit and Records--Negotiation	JUN 2020
52.215-10	Price Reduction for Defective Certified Cost or Pricing Data	AUG 2011
52.215-11	Price Reduction for Defective Certified Cost or Pricing Data--Modifications	JUN 2020
52.215-12 (Dev)	Subcontractor Certified Cost or Pricing Data (Deviation 2018-O0015)	JUN 2020
52.215-13 (Dev)	Subcontractor Certified Cost or Pricing Data - Modifications (Deviation 2018-O0015)	JUN 2020
52.215-17	Waiver of Facilities Capital Cost of Money	OCT 1997

52.216-24	Limitation Of Government Liability	APR 1984
52.217-7	Option For Increased Quantity-Separately Priced Line Item	MAR 1989
52.219-6 (Dev)	Notice of Total Small Business Set-Aside (DEVIATION 2020-O0008).	OCT 2020
52.219-8	Utilization of Small Business Concerns	OCT 2018
52.219-14 (Dev)	Limitations on Subcontracting (DEVIATION 2020-O0008)	MAR 2020
52.219-28	Post-Award Small Business Program Rerepresentation	NOV 2020
52.222-1	Notice To The Government Of Labor Disputes	FEB 1997
52.222-3	Convict Labor	JUN 2003
52.222-4	Contract Work Hours and Safety Standards - Overtime Compensation	MAY 2018
52.222-7	Withholding of Funds	MAY 2014
52.222-8	Payrolls and Basic Records	AUG 2018
52.222-9	Apprentices and Trainees	JUL 2005
52.222-10	Compliance with Copeland Act Requirements	FEB 1988
52.222-11	Subcontracts (Labor Standards)	MAY 2014
52.222-12	Contract Termination-Debarment	MAY 2014
52.222-14	Disputes Concerning Labor Standards	FEB 1988
52.222-15	Certification of Eligibility	MAY 2014
52.222-21	Prohibition Of Segregated Facilities	APR 2015
52.222-26	Equal Opportunity	SEP 2016
52.222-27	Affirmative Action Compliance Requirements for Construction	APR 2015
52.222-35	Equal Opportunity for Veterans	JUN 2020
52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020
52.222-37	Employment Reports on Veterans	JUN 2020
52.222-40	Notification of Employee Rights Under the National Labor Relations Act	DEC 2010
52.222-50	Combating Trafficking in Persons	OCT 2020
52.222-54	Employment Eligibility Verification	OCT 2015
52.223-2	Affirmative Procurement of Biobased Products Under Service and Construction Contracts	SEP 2013
52.223-3	Hazardous Material Identification And Material Safety Data	FEB 2021
52.223-5	Pollution Prevention and Right-to-Know Information	MAY 2011
52.223-6	Drug-Free Workplace	MAY 2001
52.223-12	Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners.	JUN 2016
52.223-15	Energy Efficiency in Energy-Consuming Products	MAY 2020
52.223-17	Affirmative Procurement of EPA-Designated Items in Service and Construction Contracts	AUG 2018
52.223-18	Encouraging Contractor Policies To Ban Text Messaging While Driving	JUN 2020
52.223-19	Compliance with Environmental Management Systems	MAY 2011
52.223-20	Aerosols	JUN 2016
52.223-21	Foams	JUN 2016
52.225-13	Restrictions on Certain Foreign Purchases	FEB 2021
52.227-1	Authorization and Consent	JUN 2020
52.227-2	Notice And Assistance Regarding Patent And Copyright Infringement	JUN 2020
52.227-4	Patent Indemnity-Construction Contracts	DEC 2007
52.228-2	Additional Bond Security	OCT 1997
52.228-5	Insurance - Work On A Government Installation	JAN 1997
52.228-11 (Dev)	Individual Surety--Pledge of Assets (DEVIATION 2020-O0016)	FEB 2021
52.228-12	Prospective Subcontractor Requests for Bonds	MAY 2014

52.228-14	Irrevocable Letter of Credit	NOV 2014
52.228-15 (Dev)	Performance and Payment Bonds-Construction. (Deviation 2020-O0016)	JUN 2020
52.229-3	Federal, State And Local Taxes	FEB 2013
52.232-5	Payments under Fixed-Price Construction Contracts	MAY 2014
52.232-16 (Dev)	Progress Payments (DEVIATION 2020-O0010)	JUN 2020
52.232-17	Interest	MAY 2014
52.232-23 Alt I	Assignment of Claims (May 2014) - Alternate I	APR 1984
52.232-27	Prompt Payment for Construction Contracts	JAN 2017
52.232-33	Payment by Electronic Funds Transfer--System for Award Management	OCT 2018
52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	DEC 2013
52.233-1 Alt I	Disputes (May 2014) - Alternate I	DEC 1991
52.233-3	Protest After Award	AUG 1996
52.233-4	Applicable Law for Breach of Contract Claim	OCT 2004
52.236-2	Differing Site Conditions	APR 1984
52.236-3	Site Investigation and Conditions Affecting the Work	APR 1984
52.236-4	Physical Data	APR 1984
52.236-5	Material and Workmanship	APR 1984
52.236-6	Superintendence by the Contractor	APR 1984
52.236-7	Permits and Responsibilities	NOV 1991
52.236-8	Other Contracts	APR 1984
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements	APR 1984
52.236-10	Operations and Storage Areas	APR 1984
52.236-11	Use and Possession Prior to Completion	APR 1984
52.236-12	Cleaning Up	APR 1984
52.236-13 Alt I	Accident Prevention (Nov 1991) - Alternate I	NOV 1991
52.236-16 Alt I	Quantity Surveys (Apr 1984) - Alternate I	APR 1984
52.236-17	Layout of Work	APR 1984
52.236-21 Alt I	Specifications and Drawings for Construction (Feb 1997) - Alternate I	APR 1984
52.236-26	Preconstruction Conference	FEB 1995
52.242-13	Bankruptcy	JUL 1995
52.242-14	Suspension of Work	APR 1984
52.243-4	Changes	JUN 2007
52.243-7	Notification Of Changes	JAN 2017
52.244-6	Subcontracts for Commercial Items	NOV 2020
52.246-12	Inspection of Construction	AUG 1996
52.246-21	Warranty of Construction	MAR 1994
52.248-3	Value Engineering-Construction	OCT 2020
52.249-2 Alt I	Termination for Convenience of the Government (Fixed-Price) (Apr 2012) - Alternate I	SEP 1996
52.249-10	Default (Fixed-Price Construction)	APR 1984
52.251-1	Government Supply Sources	APR 2012
52.252-4	Alterations in Contract	APR 1984
52.252-6	Authorized Deviations In Clauses	NOV 2020
52.253-1	Computer Generated Forms	JAN 1991
252.201-7000	Contracting Officer's Representative	DEC 1991
252.203-7000	Requirements Relating to Compensation of Former DoD Officials	SEP 2011
252.203-7001	Prohibition On Persons Convicted of Fraud or Other Defense-Contract-Related Felonies	DEC 2008

252.203-7002	Requirement to Inform Employees of Whistleblower Rights	SEP 2013
252.203-7003	Agency Office of the Inspector General	AUG 2019
252.203-7004	Display of Hotline Posters	AUG 2019
252.204-7000	Disclosure Of Information	OCT 2016
252.204-7003	Control Of Government Personnel Work Product	APR 1992
252.204-7004	Antiterrorism Awareness Training for Contractors.	FEB 2019
252.204-7006	Billing Instructions	OCT 2005
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting	DEC 2019
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support	MAY 2016
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services	JAN 2021
252.204-7020	NIST SP 800-171 DoD Assessment Requirements	NOV 2020
252.205-7000	Provision Of Information To Cooperative Agreement Holders	DEC 1991
252.208-7000	Intent To Furnish Precious Metals As Government--Furnished Material	DEC 1991
252.209-7004	Subcontracting With Firms That Are Owned or Controlled By The Government of a Country that is a State Sponsor of Terrorism	MAY 2019
252.217-7027	Contract Definitization	DEC 2012
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements	DEC 2010
252.223-7001	Hazard Warning Labels	DEC 1991
252.223-7002	Safety Precautions For Ammunition And Explosives	MAY 1994
252.223-7003	Changes In Place Of Performance--Ammunition And Explosives	DEC 1991
252.223-7006	Prohibition On Storage, Treatment, and Disposal of Toxic or Hazardous Materials	SEP 2014
252.223-7008	Prohibition of Hexavalent Chromium	JUN 2013
252.225-7012	Preference For Certain Domestic Commodities	DEC 2017
252.225-7016	Restriction On Acquisition Of Ball and Roller Bearings	JUN 2011
252.225-7017 (Dev)	Photovoltaic Devices (DEVIATION 2020-O0019)	JUL 2020
252.225-7030	Restriction On Acquisition Of Carbon, Alloy, And Armor Steel Plate	DEC 2006
252.225-7048	Export-Controlled Items	JUN 2013
252.225-7972 (Dev)	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems (DEVIATION 2020-O0015)	MAY 2020
252.227-7022	Government Rights (Unlimited)	MAR 1979
252.227-7023	Drawings and Other Data to become Property of Government	MAR 1979
252.227-7025	Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends	MAY 2013
252.227-7033	Rights in Shop Drawings	APR 1966
252.231-7000	Supplemental Cost Principles	DEC 1991
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports	DEC 2018
252.232-7004 (Dev)	DoD Progress Payment Rates (DEVIATION 2020-O0010)	MAR 2020
252.232-7010	Levies on Contract Payments	DEC 2006
252.232-7017	Accelerating Payments to Small Business Subcontractors--Prohibition on Fees and Consideration	APR 2020
252.236-7000	Modification Proposals-Price Breakdown	DEC 1991
252.236-7001	Contract Drawings, and Specifications	AUG 2000
252.236-7002	Obstruction of Navigable Waterways	DEC 1991
252.236-7005	Airfield Safety Precautions	DEC 1991
252.243-7001	Pricing Of Contract Modifications	DEC 1991
252.243-7002	Requests for Equitable Adjustment	DEC 2012

252.243-7999 (Dev)	Section 3610 Reimbursement. (DEVIATION 2020-O0021)	AUG 2020
252.244-7000	Subcontracts for Commercial Items	JAN 2021
252.246-7004	Safety of Facilities, Infrastructure, and Equipment for Military Operations	OCT 2010
252.247-7023	Transportation of Supplies by Sea	FEB 2019
252.251-7000	Ordering From Government Supply Sources	AUG 2012

CLAUSES INCORPORATED BY FULL TEXT

52.211-10 COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK (APR 1984)

The Contractor shall be required to (a) commence work under this contract within **15** calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than **specified on each task order**.* The time stated for completion shall include final cleanup of the premises.

****Performance periods are defined on a task order basis.***

(End of clause)

52.211-12 LIQUIDATED DAMAGES--CONSTRUCTION (SEP 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount **specified on each task order** for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of clause)

52.216-18 ORDERING. (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from **award date** through **effective term of the contract**.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when--

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either--

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the
Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than **$1,000,000***, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

***Except the minimum order shall be $25,000 to the extent required to expend the minimum guarantee.**

(b) Maximum order. The Contractor is not obligated to honor -

(1) Any order for a single item in excess of **$20,000,000**;

(2) Any order for a combination of items in excess of **$35,000,000**; or

(3) A series of orders from the same ordering office within **three (3)** days that together call for quantities exceeding the limitation in paragraph (b) (1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within **two (2)** days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 INDEFINITE QUANTITY. (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in

the Schedule up to and including the quantity designated in the Schedule as the "maximum". The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum".

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after **the contract completion date**.

(End of clause)

52.216-32 TASK-ORDER AND DELIVERY-ORDER OMBUDSMAN (SEPT 2019)

(a) In accordance with 41 U.S.C. 4106(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract.

Ms. Cindy Shaver, Deputy Assistant Secretary of the Navy (Acquisition and Procurement), 1000 Navy Pentagon, Washington, DC 20350, phone (703) 614-9600, fax (703) 614-9394, email NCAG@navy.mil

(b) Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

(c) Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within **30 days**; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least **30 days** before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed **96 months**.

(End of clause)

52.225-11 BUY AMERICAN—CONSTRUCTION MATERIALS UNDER TRADE AGREEMENTS (DEVIATION 2020-O0019) (JAN 2021)

(a) Definitions. As used in this clause—

Caribbean Basin country construction material means a construction material that—

(1) Is wholly the growth, product, or manufacture of a Caribbean Basin country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a Caribbean Basin country into a new and different construction material distinct from the materials from which it was transformed.

Commercially available off-the-shelf (COTS) item—

(1) Means any item of supply (including construction material) that is—

(i) A commercial item (as defined in paragraph (1) of the definition at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into a construction material.

Construction material means an article, material, or supply brought to the construction site by the Contractor or subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means—

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Designated country means any of the following countries:

(1) A World Trade Organization Government Procurement Agreement (WTO GPA) country (Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Israel, Italy, Japan, Korea (Republic of), Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or United Kingdom);

(2) A Free Trade Agreement (FTA) country (Australia, Bahrain, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Oman, Panama, Peru, or Singapore);

(3) A least developed country (Afghanistan, Angola, Bangladesh, Benin, Bhutan, Burkina Faso, Burundi, Cambodia, Central African Republic, Chad, Comoros, Democratic Republic of Congo, Djibouti, Equatorial Guinea, Eritrea, Ethiopia, Gambia, Guinea, Guinea-Bissau, Haiti, Kiribati, Laos, Lesotho, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Nepal, Niger, Rwanda, Samoa, Sao Tome and Principe, Senegal, Sierra Leone, Solomon Islands, Somalia, South Sudan, Tanzania, Timor-Leste, Togo, Tuvalu, Uganda, Vanuatu, Yemen, or Zambia); or

(4) A Caribbean Basin country (Antigua and Barbuda, Aruba, Bahamas, Barbados, Belize, Bonaire, British Virgin Islands, Curacao, Dominica, Grenada, Guyana, Haiti, Jamaica, Montserrat, Saba, St. Kitts and Nevis, St. Lucia, St. Vincent and the Grenadines, Sint Eustatius, Sint Maarten, or Trinidad and Tobago).

Designated country construction material means a construction material that is a WTO GPA country construction material, an FTA country construction material, a least developed country construction material, or a Caribbean Basin country construction material.

Domestic construction material means—

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if--

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 55 percent of the cost of all its components. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Free Trade Agreement country construction material means a construction material that—

(1) Is wholly the growth, product, or manufacture of a Free Trade Agreement (FTA) country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a FTA country into a new and different construction material distinct from the materials from which it was transformed.

Least developed country construction material means a construction material that—

(1) Is wholly the growth, product, or manufacture of a least developed country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a least developed country into a new and different construction material distinct from the materials from which it was transformed.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

United States means the 50 States, the District of Columbia, and outlying areas.

WTO GPA country construction material means a construction material that—

(1) Is wholly the growth, product, or manufacture of a WTO GPA country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a WTO GPA country into a new and different construction material distinct from the materials from which it was transformed.

(b) Construction materials.

(1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction material, excluding COTS fasteners. (See FAR 12.505(a)(2)). In addition, the Contracting Officer has determined that the WTO GPA and Free Trade Agreements (FTAs) apply to this acquisition. Therefore, the Buy American restrictions are waived for designated country construction materials.

(2) The Contractor shall use only domestic or designated country construction material in performing this contract, except as provided in paragraphs (b)(3) and (b)(4) of this clause.

(3) The requirement in paragraph (b)(2) of this clause does not apply to information technology that is a commercial item or to the construction materials or components listed by the Government as follows: **None**

(4) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(3) of this clause if the Government determines that—

(i) The cost of domestic construction material would be unreasonable. The cost of a particular domestic construction material subject to the restrictions of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1)(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(4) of this clause shall include adequate information for Government evaluation of the request, including—

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the

contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(4)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) Data. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

FOREIGN AND DOMESTIC CONSTRUCTION MATERIALS PRICE COMPARISON

Construction material description	Unit of measure	Quantity	Price (dollars)*
Item 1:			
Foreign construction material			
Domestic construction material			
Item 2:			
Foreign construction material			
Domestic construction material			

[Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)].*

[List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.]

[Include other applicable supporting information.]

(End of clause)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

Federal Acquisition Regulation (FAR):
https://www.acquisition.gov/far/

Defense Acquisition Regulation Supplement (DFARS):
https://www.acquisition.gov/dfars/

(End of clause)

252.222-7000 RESTRICTIONS ON EMPLOYMENT OF PERSONNEL (MAR 2000)

(a) The Contractor shall employ, for the purpose of performing that portion of the contract work in **Guam**, individuals who are residents thereof and who, in the case of any craft or trade, possess or would be able to acquire promptly the necessary skills to perform the contract.

(b) The Contractor shall insert the substance of this clause, including this paragraph (b), in each subcontract awarded under this contract.

(End of clause)

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (DEC 2018)

(a) Definitions. As used in this clause—

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall—

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/.

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items—

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Not Applicable

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Navy Construction / Facilities Management Invoice

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial item financing, submit a commercial item financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table

Field Name in WAWF	*Data to be entered in WAWF*
Pay Official DoDAAC	**Specified on task order**
Issue By DoDAAC	**Specified on task order**
Admin DoDAAC	**Specified on task order**
Inspect By DoDAAC	**Specified on task order**
Ship To Code	**Specified on task order**
Ship From Code	Not Applicable
Mark For Code	Not Applicable
Service Approver (DoDAAC)	Not Applicable
Service Acceptor (DoDAAC)	Not Applicable
Accept By DoDAAC	**Specified on task order**
LPO DoDAAC	**Specified on task order**
DCAA Auditor DoDAAC	Not Applicable
Other DoDAAC(s)	Not Applicable

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Specified on task order

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section 00 73 00 - Supplementary Conditions

NFAS LANGUAGE

The following Naval Facilities Acquisition Standards (NFAS) languages (formerly NFAS clauses) are applicable to this contract.

AUTHORITY

1. No person other than the Contracting Officer has authority to bind the Government with respect to this contract.

2. No action or omission of any government employee or representative other than the Contracting Officer shall increase or decrease the scope of this contract or shall otherwise modify the terms and conditions of this contract.

3. In no event shall any of the following be effective or binding on the Government or imputed to the Contracting Officer with respect to this contract:

(a) An understanding or agreement between the Contractor and anyone other than the Contracting Officer;

(b) A purported modification or change order issued by anyone other than the Contracting Officer;

(c) A promise by anyone other than the Contracting Officer to provide additional funding or make payments; or

(d) An order, direction, consent, or permission from anyone other than the Contracting Officer to:

(i) Incur costs in excess of a specified estimated cost, allotment of funds, or other ceiling; or

(ii) Expend hours in excess of a specified level of effort.

(End of NAVFAC language)

NOTICE OF BONDING REQUIREMENTS

Within 10 days after receipt of award, the bidder/offeror to whom the award is made shall furnish the bonds required by FAR Clause 52.228-15.

Bidders/offerors are hereby notified that the contract time for purposes of fixing the completion date, default, and liquidated damages will be as stated in FAR Clause 52.211-10 Commencement, Prosecution, and Completion of Work, regardless of when performance and payment bonds or deposits in lieu of surety are executed.

(End of NAVFAC language)

PRE-PERFORMANCE CONFERENCE

Within 15 days of contract award, prior to commencement of the work, the Contractor will meet in conference with representatives of the Contracting Officer, at a time to be determined by the Contracting Officer, to discuss and develop mutual understanding relative to scheduling and administering work.

(End of NAVFAC language)

UTILITIES FOR CONSTRUCTION AND TESTING

The Contractor shall be responsible for obtaining, either from available Government sources or local utility companies, all utilities required for construction and testing. The Contractor shall provide these utilities at his expense, paid for at the current utility rate delivered to the job site. The Contractor shall provide and maintain all temporary utility connections and distribution lines, and all meters required to measure the amount of each utility used.

(End of NAVFAC language)

Section 00 73 01

LABOR REQUIREMENTS

1. CONTRACT WORK HOURS AND SAFETY STANDARDS ACT

With the exception of Defense Policy Review Initiative (DPRI) projects, construction contracts in Guam are subject to the Contract Work Hours and Safety Standards Act but are not subject to Davis-Bacon Act. Therefore, the following FAR clauses shall be modified to reflect this applicability and included in this contract.

a. FAR 52.222-11, Subcontracts (Labor Standards), except that the list of applicable clauses in paragraph b shall be modified to refer only to the clauses: Contract Work Hours and Safety Standards Act-Overtime Compensation, Subcontracts (Labor Standards), and Contract Termination-Debarment, Disputes Concerning Labor Standards.

b. FAR 52.222-12, Contract Termination-Debarment, except that the list of applicable clauses in the first sentence shall be modified to refer only to the Contract Work Hours and Safety Standards Act-Overtime Compensation, and Subcontracts (Labor Standards).

2. NOTICE CONCERNING LABOR RATES

a. Davis-Bacon Act does not apply to this project.

b. Offerors maintain the responsibility to comply with the Government of Guam's Labor Certification process and current prevailing wage rates, as applicable. The notice for prevailing wage rates for construction is attached as Attachment (2) and provided for information only.

c. Inquiries should be directed to the Department of Labor, Government of Guam, Wage and Hour Division, P.O. Box 9970, Tamuning, Guam 96931, telephone (671) 475-7024 or (671) 300-4601/2.

Section 00 73 02

CONTRACT TYPE/PERFORMANCE
SPECIAL CONTRACT REQUIREMENTS

1. CONTRACT TYPE

This is an IDIQ contract with no pre-established fixed contract prices. The actual amount of work to be performed and the time of such performance will be determined by a Contracting Officer, who will issue written task orders to the Contractor. Award of task orders will be on a firm fixed price basis. This is not a requirements contract.

Under a design-build contract, the contractor is to develop, determine, and propose the construction solution best suited to serve the Government's requirements. Task order proposals are binding on the contractor and any substitution requires prior Contracting Officer's approval and shall be equal or better, in the judgment of the Contracting Officer, than the items originally proposed.

2. SET-ASIDE: This contract is 100% set-aside for Small Business concerns.

3. NAICS CODE: 236220; Size standard of $45,000,000 applies to this general construction contract.

4. DESCRIPTION OF WORK

The work to be acquired under this contract is new construction, renovation/modernization, and routine repair/ maintenance within the NAICS code listed, by method of design-build, at various federal or military facilities and installations on Guam. Occasionally, work may be required at federal or military facilities and installations in the Northern Mariana Islands and the outlying Pacific islands. The work (tasks) will generally provide all design, labor, transportation, equipment, materials, tools, supplies, engineering, supervision, and administration services needed to complete the scope of work. A list of facility types are identified in the P-72 “Facility Category Codes” publication. The facility types include, but are not limited to: 1) Operations and training facilities, 2) Maintenance and production facilities, 3) Supply facilities, 4) Hospital-medical facilities, 5) Administrative facilities, 6) Housing and community facilities, and 7) Utilities and ground improvement. The work shall also include sampling, testing, removal, and disposal of lead contaminated paint, asbestos and other hazardous materials.

5. CONTRACT DURATION, LIMITS, AND AMOUNTS

a. Term of contract: Each of the resulting contracts will have a base period of 60 months.

b. Options: Each contract contains three (3) 12-month options for a total maximum duration of 96 months. The Government has the option to extend the term of the contract in accordance with the contract clause entitled “FAR 52.217-9, Option to Extend the Term of the Contract”. The Government may extend their contract by written notice to the Contractor within thirty (30) days, provided that the Government will give the Contractor a preliminary written notice of its intent to extend within thirty (30) days before the contract expires. The preliminary notice does not commit the Government to an extension.

c. Amounts: The maximum aggregate dollar value for all awarded contracts, including the base period and all options, is $600,000,000.

d. Task Order Limitations: Task orders will range between $1,000,000 and $20,000,000. Task orders may fall below or above this limit; however, under the general terms of the contract, contractors are not obligated to accept task orders as follows: Contractors are not obligated to honor (1) any order for a single item in excess of $20,000,000; (2) any order for a combination of items in excess of $35,000,000; or (3) a series of orders from the same ordering office within 3 days that together call for quantities exceeding the limitation in excess of $35,000,000. A task order may be issued in an amount less than the minimum order

amount of $1,000,000 when it is determined by the Government as necessary to expend the minimum guarantee.

e. Task Order Exceeding Limitation: Notwithstanding the task order limitations in paragraph (d) above, contractors may voluntarily participate in task orders estimated to exceed the limitations listed. To participate, contractors must provide a letter from their surety or sureties certifying bonding capabilities and endorsing participation in task orders exceeding the limitations outlined in paragraph (d) above. A list of participants will be maintained under the contract; however, contractors remain responsible for providing current, accurate and complete information regarding bonding capabilities.

f. Minimum Guarantee: The Government makes no representation as to the number of task orders or actual amount of work to be ordered. The successful offerors will each receive a minimum guarantee of $25,000. The minimum guarantee applies to the base period only. Contractors are not guaranteed work in excess of the minimum guarantee specified herein.

6. COMMENCEMENT OF WORK

The work shall commence within fifteen (15) days after award of the base period.

7. PLACE OF PERFORMANCE

The place of performance will be designated on each individual task order.

8. PROPOSAL PREPARATION COSTS

The costs for preparation of task order proposals, if required under this contract, shall be the responsibility of the contractor and not directly reimbursable. Each task order awarded will include at a minimum all labor wages, management, supervision, mobilization, material and equipment costs. The contractor shall furnish all project management, planning, estimating, labor, transportation, materials, equipment, tools, supervision, design if applicable, and all other associated costs necessary to fulfill the requirements of the task order.

9. PERFORMANCE AND PAYMENT BONDS

Performance and payment bonds shall be in the form of firm commitment, supported by corporate sureties whose names appear on the list contained in the Treasury Department Circular 570, in the amount of 100% will be required for each task order and shall be submitted for approval to the Contracting Officer within 10 days (unless otherwise stipulated on the individual task order) of award of a task order. Commencement of construction is contingent upon approval of required bonds and issuance of a notice to proceed (NTP).

10. REQUIRED INSURANCE

a. Within fifteen days after award of this contract, the contractor(s) shall furnish the Administrative Contracting Officer a Certificate of Insurance as evidence of the existence of the following insurance coverage amounts not less than the amount specified below in accordance with FAR Clause 52.228-5, Insurance – Work on a Government Installation.

COVERAGE:

Comprehensive General Liability: $500,000 per occurrence

Automobile Liability: $200,000 per person, $500,000 per occurrence for bodily injury; $20,000 per occurrence for property damage Workmen’s Compensation: As required by Federal and State Worker’s compensation and occupational disease laws.

Employer’s Liability Coverage: $l00,000, except in states where worker’s compensation may not be written by private carriers.

Others as required by state law.

b. The Certificate of Insurance shall provide for thirty (30) days written notice to the Contracting Officer by the insurance company prior to cancellation or material change in policy coverage. Other requirements and information are contained in the aforementioned “Insurance” clause.

11. TASK ORDER PERFORMANCE PERIOD

FAR Clause 52.211-10, Commencement, Prosecution, and Completion of Work will be incorporated into each task order identifying the construction schedule. The Government reserves the right to negotiate a task order’s performance period if determined to be in the best interest of the Government.

12. SITE VISIT

Upon receipt of the scope of work, including applicable drawings, and following a brief time period for reviewing the documents, the Contractor shall inspect the job site. Any deficiencies, conflicts, or other areas of concern existing in the scope of work and applicable drawings should be brought to the attention of the Contracting Officer, in writing. The contractor shall also notify the Contracting Officer, in writing, upon observing any features in the design that appear to be ambiguous, confusing, conflicting or erroneous. Ten (10) or more failures to attend site visits may be reason for the Government’s determination not to exercise the Contractor’s option periods.

13. SUPERVISION

For each task order, the contractor shall provide supervision in accordance with FAR Clause 52.236-6, Superintendence by the Contractor. In addition to the required supervision, the contractor shall provide for a Quality Control (QC) manager for each task order issued under the contract. No construction work or testing may be performed unless the QC manager is on the work site; however, construction work may continue if the QC manager is conducting QC related work for the specific task order on base installations. In situations where more than one project location is designated in the task order, construction work may continue at a worksite if the QC manager is present at another one of the task order’s related worksite. The Site Safety and Health Officer (SSHO) may be a collateral duty of either the superintendent, QC manager, or other designated employee. In no case, however, will all three functions (superintendent, QC, and SSHO) be assigned to the same individual.

14. SUBCONTRACTING RESPONSIBILITIES

The contractor shall be responsible for the management and performance of all subcontractors. The contractor shall ensure subcontractors are competent and capable of handling all assigned work. The contractor shall ensure task orders are completed within the stated requirements.

The contractor is responsible for ensuring subcontracting opportunities are made available to all small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged small business and women-owned small businesses.

15. NOTICE OF CONSTRUCTIVE CHANGES

No order, statement or direction of the Contracting Officer, an authorized representative of the Contracting Officer whether or not acting within the limits of his authority, or any other representative of the Government, shall constitute a change order under the “Changes” clause of this contract or entitle the contractor(s) to an equitable adjustment of the price or delivery schedule, unless such a change is issued in writing and signed by the Contracting Officer.

16. PAYMENTS

Designated paying office will be determined upon award of individual task orders under this contract. Invoicing procedures will be as stated in Section 01 20 00.05 20 Price and Payment Procedures for Design-Build. Percentage of performance payments will be processed through the designated Administrative Contracting Officer. Invoices

shall be submitted in accordance with DFARS clause 252.232-7006, Wide Area Workflow Payment Instructions and to the office identified in block 6 of the DD 1155.

17. PRE-CONSTRUCTION MEETING

Prior to commencing work under a task order, the contractor shall meet with the Contracting Officer and/or designated technical personnel at a mutually agreeable time to discuss and develop mutual understandings concerning schedule and administering work.

18. PARTNERING

Partnering is a structured process, as well as philosophy of doing business with contractors and clients that recognizes common goals through communication and teamwork. It helps create an environment where trust and teamwork prevent disputes, foster good working relationships to everyone's benefit, and facilitate the completion of a successful contract. In support of the command's goals of teamwork and client satisfaction, our policy is to practice the philosophy of Partnering on every contract we administer. The Partnering process is divided into two levels, Formal and Informal. Informal partnering is required during performance of individual task orders with follow-on sessions if determined necessary by the Government. Formal partnering may be required on high risk, high visibility, compressed duration, or technically complex projects as specified on the task order. The contractor shall pay all costs associated with the formal partnering effort. The participants shall bear their own costs for meals, lodging, and transportation associated with partnering.

19. PERFORMANCE EVALUATIONS

The Administrative Contracting Office will complete a contractor's performance evaluation for input into the Contractor Performance Assessment Reporting System (CPARS) database. The evaluation will take into account all aspects of the contractor's performance. Interim performance evaluations may be completed at any time the contractor's performance is considered less than satisfactory or to provide feedback on the design portion of a design-build task order. Contractors will be provided a copy of the performance evaluation and an opportunity to discuss the evaluation. The negative performance evaluations will have an impact on the award of future task orders.

20. CONSOLIDATED SCHEDULES

In addition to the requirements for a network analysis schedule for each task order, the contractor shall provide a separate, single consolidated schedule for all task orders it is issued under the contract. This consolidated schedule shall be updated and provided to the Contracting Officer on the first day of each month; and shall incorporate significant milestones and related information for each task order. Required information in the consolidated schedule will be provided as directed by the Contracting Officer and includes, but is not limited to, task order award date and amount, description, estimated completion date, contract completion date, percentage of scheduled completion, percentage of actual completion, pending issues, contract amount including modifications, and DD1354 submission date. This consolidated schedule is a tool to manage the contract and will be used to measure progress and to evaluate potential impact on the performance of future task orders. The Contractor remains responsible for providing detailed, current, accurate and complete information in the consolidated schedules.

21. POTENTIAL TASK ORDERS

The contractor's progress on ongoing task orders will be measured using the consolidated schedule required in paragraph 20 above. Contractor must prosecute the work or any separable part, with the diligence that will ensure completion within the time specified in the task orders. The Government reserves the right to not award a contractor new task orders if the contractor fails to prosecute the work on any outstanding task orders of any such action.

Section 00 73 03

CONTRACT ADMINISTRATION

1. IDENTIFICATION OF PROCURING CONTRACTING OFFICER/ORDERING OFFICER

The Procuring Contracting Officer (PCO) is located at the Naval Facilities Engineering Systems Command Marianas (NAVFAC Marianas), Contracts Support Line MILCON Contract Office, Code CON3, Bldg 4175, A-Wing, Pedro LG Roberto Drive, Apra Heights, Santa Rita, Guam 96915. Overall administration of the basic contract will be the responsibility of the PCO. The PCO is responsible for the contract in its entirety and possess complete authority to modify the terms of the basic contract. NAVFAC Marianas Contracting Officers and authorized ordering officers designated in writing will be responsible for ordering and administration of the individual task orders. The terms “Contracting Officer” and “Ordering Officer” may be used interchangeably when referring to individual task orders. All correspondence for the basic contract shall be addressed to the PCO and shall include the contract number assigned.

2. TASK ORDER ADMINISTRATION

Administrative Contracting Officers (ACO) shall be designated, in writing, upon award of individual task orders. These individuals may include contracting officers located, or responsible for that specific location, where the work is to be accomplished. These individuals shall possess the authority to act on behalf of the Government with respect to the specific task order. All day-to-day construction contract administration will be the responsibility of the designated ACO.

3. OMBUDSMAN

The agency’s designated task order ombudsman is responsible for reviewing complaints from contractors and ensuring that all contractors are afforded a fair opportunity to be considered for award of task orders, in accordance with the requirements of the contract. Refer to FAR clause 52.216-32, Task-Order and Delivery-Order Ombudsman.

Section 00 73 04

TASK ORDER ISSUANCE PROCEDURES

1. GENERAL

a. When the Government requires work under the contract, a Request for Proposal Letter (RFPL) will be issued as appropriate. RFPLs are usually accompanied by a Statement of Work (SOW) and/or plans and specifications of the project and will normally be issued by electronic mail but may be placed via mail, telephone, facsimile or other means.

b. Contractors are responsible for submitting proposals, and any modifications or revisions, so as to reach the Government office designated in the RFPL by the time specified in the RFPL. Any proposal, modification, or revision, received at the Government office after the exact time specified for receipt of proposals will be late and will not be considered unless it meets the requirements of FAR 52.215-1.

c. Task orders will be awarded on DD Form 1155, Order for Supplies or Services.

d. The Government will not be obligated to reimburse the contractor for work performed, items delivered, or any costs incurred, nor shall the contractor be obligated to perform, deliver, or otherwise incur costs except as authorized by duly executed task orders.

e. Each task order shall include as a minimum:

(1) Date of order
(2) Contract number and order number
(3) Contract item number and description, quantity, and unit price or estimated cost
(4) Delivery or performance schedule
(5) Place of performance
(6) Any packaging, packing, and shipping instructions
(7) Accounting and appropriation data
(8) Method of payment and payment office

f. Modifications to task orders will be issued on Standard Form (SF) 30.

g. Each contractor is required to submit a reasonable number of good faith proposals to RFPLs. If unable to propose on a task order, contractors are required to notify the Contracting Officer in writing within two (2) business days of RFPL issuance if they cannot participate in the site visit or submit an offer and state the reasons why. Failure to provide this notification or participate in task orders may impact future consideration for task orders and exercise of an option.

h. In accordance with FAR 16.505(a)(10), no protest under Subpart 33.1 is authorized in connection with the issuance or proposed issuance of an order under a task order contract except for a protest on the grounds that the order increases the scope, period, or maximum value of the contract; or a protest of an order valued in excess of $10 million. Protests of orders in excess of $10 million may only be filed with the Government Accountability Office, in accordance with the procedures at FAR 33.104.

2. COMPETITION

a. Competition for issuance of task orders is limited to those awardees under this contract. All awardees will be given a fair opportunity to be considered for each task order unless the Contracting Officer applies one of the exceptions noted in paragraph (f) below. Upon determining the need to issue a task order, all awardees will be considered equally against the stated criteria in the RFPL.

b. Task order proposals will be evaluated based on one of the following criteria:

(1) Price Only;
(2) Lowest Price Technically Acceptable (LPTA); or
(3) Price and Non-price Evaluation Factors Combined

c. Each task order will be awarded, as a result of competition to the contractor whose offer is the most advantageous to the Government considering the criteria specified in the RFPL.

d. The Contracting Officer may consider (1) past performance on earlier orders under the contract, including quality, timeliness, and cost control; and (2) potential impact on other task orders placed with the contractor. See paragraphs 20 and 21 of Section 00 73 02. Other factors may be considered as specified in the RFPL.

e. The Contracting Officer need not contact each of the multiple awardees under the contract before selecting a task order awardee if the Contracting Officer has information available to ensure that each awardee is provided a fair opportunity to be considered for each task order. The competition requirements in FAR part 6 and the policies in FAR Subpart 15.3 do not apply to the ordering process.

f. Each task order exceeding the simplified acquisition threshold shall be placed on a competitive basis in accordance with FAR 16.505(b) unless this requirement is waived on the basis of a justification that is prepared and approved and includes a written determination that –

(1) The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays;
(2) Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized;
(3) The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order;
(4) It is necessary to place an order to satisfy a minimum guarantee; or
(5) A statute expressly authorizes or requires that the purchase be made from a specified source.

g. For projects estimated at less than the simplified acquisition threshold, the Contracting Officer reserves the right to make award of the task order without competition or justification based upon one of the circumstances described in paragraph (f) above. The Contracting Officer shall document in the contract file the basis for using an exception to the fair opportunity process.

3. REQUIREMENT FOR PROPOSALS

a. Task orders will be firm-fixed-price with a specific completion date or performance period and will clearly define the specific services to be performed or the performance desired. When options are included in the Schedule, the task order will specify the number of days after award for exercising the options.

b. Task orders incorporate by reference applicable provisions and clauses in the basic contract. All task orders are subject to the terms and conditions of this contract. In the event of conflict between a task order and this contract, the contract will control, except as otherwise noted in the contract documents. The Government reserves the right to incorporate additional clauses, as appropriate, into individual task order solicitations and awards.

c. Task orders may be awarded on the basis of price only; lowest price technically acceptable; or price and non-price factors combined. The basis for award will be stated in the RFPL.

d. Task order proposals must be complete and adequately address RFPL requirements to be considered for award. Therefore, proposals must contain the best offer from a technical and price standpoint.

e. Unless otherwise specified in the RFPL, task order proposals must remain valid for 120 calendar days after the last stated date for which proposals may be received.

f. Bid Guarantee: Contractors are advised that construction projects with magnitudes more than $15,000,000 will require submission of bid bonds in the amount of 20% of the proposed price or $3 million, whichever is less, at the time designated for receipt of task order proposals.

g. Task order projects may be non-complex performance-oriented tasks requiring minimal design, may be complex construction requiring design development for design-build construction, or a combination thereof. Projects will be varying in size and complexity. In most cases, the SOW is developed entirely by the Government. Occasionally, the task orders may be written based on a Government/Contractor Team cooperative scoping of the work in order to develop a mutually agreed upon SOW. The task order may or may not have traditional plans and specifications.

h. Task order proposals may include but are not limited to:

(1) Sketches, catalog cuts, calculations, and architectural renderings
(2) List of long lead-time materials
(3) Performance time to coincide with the number of days allotted on the RFPL. (Critical Path Project schedule showing start and finish dates of submittals, procurement, delivery, and major task elements may be required)
(4) Detailed breakdown of all costs, including direct costs (labor, materials, and equipment), indirect costs, profit, taxes, overhead, markups, etc.
(5) Management plan of all tasks (current and proposed) with workload scheduling and resource management. (A Critical Path Method (CPM) diagram showing differing start dates with resources identified will suffice)
(6) Overview of the proposed construction methodology for each Definable Feature of Work (DFOW)

4. SELECTION CRITERIA

Task order awards may be based on price alone, or may be awarded based on price and, but not limited to, other non-price factor criteria. All awards shall consider price as one of the factors in the selection decision. The task order award criteria will be specified in each RFPL issued or as specified by the Contracting Officer. Whenever possible, award will be made without discussions. If discussions are required, each contractor will be requested to provide a final proposal revision, unless eliminated from discussions through the establishment of a competitive range. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.